

been aware that compliance with that ground was at issue. A statement in the communication concerning a potential discussion of, inter alia, Art. 84 EPC did not amount to a specific objection regarding the request at issue.

In the inter partes proceedings under review in R 16/13 the petitioner had filed a document with comparative test results. In its written decision, **the board of appeal raised an issue that had not been raised in the proceedings** and it had not been possible for the petitioner to infer the board's reasoning, on the basis of his own expertise, from the way the proceedings developed. The Enlarged Board allowed the petition, stating that the right to be heard is violated when a board gives, ex officio, reasons in its decision without having given the party adversely affected an opportunity to comment on these reasons or to submit new requests. In T 1378/11 the board stated that R 16/13 could not be understood to give the parties the right to find out from the deciding body how it assesses the facts and arguments on which its decision is likely to be based.

In the inter partes proceedings under review in R 2/14 of 22 April 2016, the Enlarged Board noted that the board's decisive line of argument had concerned the aspect of modifying the inactive SEQ ID NO: 4 by means of recloning the desaturase, starting from *E. gracilis*. The reasons given by the board were limited in so far as, after establishing the need for recloning, it had immediately stated its conclusion that, although the skilled person could in fact perform each of the necessary steps, combining those steps created an undue burden for him. The other two **alternative approaches relied upon by the petitioner had not been discussed at all by the board**; they had merely been referred to as suffering from the same negative conclusion. The board had mentioned neither facts nor a sequence of arguments that had led it to this conclusion. Therefore, it could not be understood and reproduced by the affected party. The Enlarged Board allowed the petition.

In R 3/15 the Enlarged Board set aside the inter partes decision under review on account of a breach of the right to be heard. The **board had reformulated the problem** based on a **new interpretation** of claim 1, **presented for the first time** in the written reasons for its decision, that none of the parties had previously made a case for, either in the opposition or the appeal proceedings. It was apparent from the parties' submissions that not only the appellant but also the respondents had assumed a different interpretation of claim 1 in the discussion on feature (ii). Thus the appellant had been surprised by the board's new line of argument on inventive step in its written decision, on which it had not had an opportunity to comment. That was a breach of the right to be heard (Art. 113 EPC).

4.4. Article 112a(2)(d) EPC – any other fundamental procedural defect

Under R 104 EPC, a fundamental procedural defect may have occurred where the board of appeal, contrary to Art. 116 EPC, failed to arrange for the holding of oral proceedings requested by the petitioner, or decided on the appeal without deciding on a request relevant to that decision. What is not defined by the Implementing Regulations does not qualify as a procedural defect within the meaning of Art. 112a(2)(d) EPC (R 16/09); see in this chapter V.B.3.4.2.

4.4.1 Rule 104(a) EPC – failure to arrange requested oral proceedings

The right to oral proceedings under Art. 116(1) EPC forms a substantial part of the right to be heard under Art. 113(1) EPC. Non-compliance with a request for oral proceedings deprives the party of an important opportunity for presenting its case (T 1050/09) and may constitute a fundamental procedural defect which merits the same treatment as the cases covered by Art. 112a(2)(a) to (c) EPC (CA/PL 5/02 Rev. 1 Add. 1, p. 26).

In R 2/12 of 17 October 2012 the petitioner argued that R 104(a) EPC should be understood not only as an obligation to arrange oral proceedings but also to give the parties enough time to exercise their right to be heard. The board held that the duration of oral proceedings is, as such, not listed among the procedural defects that might justify filing a petition for review (see also R 21/10).

4.4.2 Rule 104(b) EPC – failure to decide on a party's request

According to R 104(b) EPC, a fundamental procedural defect under Art. 112a(2)(d) EPC may have occurred where the board decided on the appeal without deciding on a request relevant to that decision. Like R 104(a) EPC (see in this chapter V.B.4.4.1), R 104(b) EPC also reflects an aspect of the right to be heard (R 21/11).

In R 19/10 it was acknowledged by the board that the EPC does not contain an explicit definition of the term "request". However, according to the common practice in the proceedings before the EPO, requests are in general directed to executable legal consequences sought by the parties. The arguments provided by the parties in support of these legal consequences do not normally belong to the legally binding requests (see also R 17/11). In R 3/14 the board explained that only requests submitted in writing or requests which the party had been recorded in the minutes of the oral proceedings fell under R 104(b) EPC (see also travaux préparatoires, CA/PL 5/02 Rev. 1 Add. 1, p. 27). In R 19/10 the board further held that it was not a procedural duty of the boards of appeal under R 104(b) EPC to analyse the submissions of the parties in order to identify potential requests which were not explicitly made (see also R 17/11).

A request "relevant to that decision" within the meaning of R 104(b) EPC is a request that could possibly have led to a different decision (R 21/11).

In the proceedings under review in R 17/13 the petitioner requested remittal of the case coupled with reimbursement of the appeal fee on the grounds of a substantial procedural violation, alternatively that the patent be maintained as granted, and finally oral proceedings. The board held oral proceedings and refused the request for maintenance of the patent and for reimbursement of the appeal fee. The Enlarged Board held that the petitioner's request for remittal was only relevant in the event of there having been a substantial procedural violation, which was held not to be the case.

In R 15/09 the Enlarged Board held that a decision to revoke a patent necessarily includes the rejection of all auxiliary requests.

In the appeal proceedings under review in R.13/14 the appellant had requested that the examining division's refusal of its request to hold oral proceedings in Munich instead of in The Hague be set aside. The board had stated, in the reasons for the decision, that it was not empowered to decide on this request. The Enlarged Board held that this statement, even if not expressed in the usual and formal terminology, had to be considered as a decision on the appellant's request.

In R.10/08 (see also R.6/14), the Enlarged Board referred to G.12/91 (OJ 1994, 285) and stated that the last point in time to intervene is not the moment a decision is announced but the moment at which the chairman declares the debate closed for deliberation. The petitioner should then have requested that the debate be re-opened if it intended to file a further request. Whether the petitioner intervened during or after the announcement of the decision is not relevant.

In R.11/08 the Enlarged Board dismissed the petitioner's allegation that the board had not ruled on a request which it had considered too general.

In R.16/14 the Enlarged Board held that since the condition underlying conditional request (iii) in the proceedings under review (namely, that the board of appeal took the position that an examining division had the option to ignore arguments advanced by an applicant) was not met, the petitioner's allegation that conditional request (iii) had become relevant again for the written reasons of the decision under review and should have been decided upon did not hold. As a consequence, the Enlarged Board held that the claim of infringement of R.104(b) EPC must be dismissed.

In R.14/10 the Enlarged Board confirmed that, if a party's request is unclear, it is the duty of the deciding body to ask for clarification before deliberation (see also R.7/14). However, if the requests as read out by the chairman in conformity with Art. 15(5) RPBA 2007 do not correspond to a party's intention, it is that party's duty to intervene at that point. In R.12/14 the Enlarged Board stated that if a party submits written requests which the board is entitled to regard as the party's final requests under Art. 15(5) RPBA 2007, the board can also safely assume that these requests are complete.

4.4.3 Successful petition under Rule 104(b) EPC

In R.21/11, so far the only allowable petition based on R.104(b) EPC, the petitioner (patentee) claimed that the board had decided on the appeal without deciding on a request for admission of a second expert testimony filed by fax. The Enlarged Board found that R.104(b) EPC was a specific manifestation of the right to be heard which applied regardless of whether the party's submission might have persuaded the board. The argument that the undecided request was irrelevant because its admission would not have made a difference could only be accepted if it could be shown that all aspects "lost" as a result of its non-admission had been taken into account in the decision under review. According to the Enlarged Board, the procedural defect asserted by the petitioner constituted an infringement of its right to be heard, both under Art.112a(2)(d) in conjunction with R.104 EPC and under Art.112a(2)(c) in conjunction with Art. 113(1) EPC. While the petitioner had argued that this infringement consisted in the

board's failure to take account of the second testimony in its decision, the Enlarged Board saw the infringement in the board's failure to consider the request for its admission. Had that request been granted, it could have influenced the outcome. There was therefore a causal link between the denied opportunity to comment and the board's decision (see in this chapter V.B.4.3.2). The contested decision was set aside.

4.5. Article 112a(2)(e) EPC – criminal act having an impact on a decision

Under Art. 112a(2)(e) EPC, a petition for review may be based on the ground that a criminal act may have had an impact on a decision. A competent court or authority must have finally established that the criminal act occurred; a conviction is not necessary (R. 105 EPC). Deviating from the general rule, the time limit for filing the petition is two months after the criminal act has been established, and in any event not later than five years after notification of the decision (Art. 112a(4) EPC).

In R. 2/10 the petitioner referred to alleged criminal acts which had, however, not been established by a criminal court or authority. The Enlarged Board rejected the petition as clearly inadmissible, due to failure to observe the time-limit for filing the petition.

5. Removal from office of a board member

5.1. General

According to Art. 23(1) EPC, first sentence, members of the Enlarged Board of Appeal and the boards of appeal may not be removed from office during their term of appointment, except if there are serious grounds for such removal and if the Administrative Council, on a proposal from the Enlarged Board of Appeal, takes a decision to this effect. According to Art. 12a RPEBA, the Administrative Council or the Vice-President of the EPO in charge of the Boards of Appeal (since the structural reform in 2016, the Boards of Appeal are now organised as a separate unit directed by the President of the Boards of Appeal) may make a request to the Enlarged Board to make a proposal, to the Administrative Council, for the removal from office of a board member.

5.2. Composition

According to Art. 2(5) RPEBA (see also Art. 10 BDS/EBA), the Enlarged Board in proceedings under Art. 23(1) EPC consists of five legally and two technically qualified members. The chairman of the Enlarged Board who is, under current practice, also President of the Boards of Appeal, must be replaced by his alternate, and two of the legally qualified members must be external members of the Enlarged Board (see Art. 11(5) EPC).

In G. 2301/15 the Enlarged Board held that the arrangements laid down in Art. 2(5) RPEBA and Art. 10 BDS/EBA for the composition of the Enlarged Board in proceedings under Art. 23(1) EPC were compatible with the EPC and general principles of law. It could not be inferred from Art. 23(1) EPC that a proposal to remove a member from office must be decided by the full Enlarged Board (consisting of all internal and external members under Art. 1 BDS/EBA).

5.3. Removal and judicial independence

In G 2301/15 the Enlarged Board stated that removing an irksome judge from office could be used to indirectly influence decisions. It was crucial to judicial independence that judges could not be removed without special institutional safeguards. The requirement that a board member may only exceptionally be removed from office on a proposal from the Enlarged Board intended to make sure that unsubstantiated or groundless allegations could not be used as pretext for getting rid of an irksome judge.

In G 2301/16 the Enlarged Board concluded that the Office President's procedurally irregular intervention in the form of a position statement was incompatible with the Enlarged Board's judicial independence.

5.4. Independence from disciplinary proceedings

According to Art. 12a(8) RPEBA, proceedings under Art. 23(1) EPC are to be conducted independently of any disciplinary or national proceedings. In G 2301/15, the Enlarged Board stated that Art. 23(1) EPC requires that the Administrative Council may apply to a board member the most severe disciplinary sanction available (dismissal) only if it has first received a proposal for his or her removal from office from the Enlarged Board. The administrative disciplinary proceedings before the appointing authority are separate from the judicial proceedings before the Enlarged Board, which must satisfy itself that the allegations are true, and so serious as to require the removal from office.

5.5. Adversarial judicial proceedings

In G 2301/15 the Enlarged Board held that proceedings under Art. 23(1) EPC were to be conducted in proper judicial form. A request by the Administrative Council initiated adversarial proceedings to which the board member concerned is a party as respondent (Art. 12a(4) RPEBA). The Administrative Council's request must set out all the facts, arguments and evidence relied on; all documents referred to must be attached (Art. 12a(5) RPEBA). According to the Enlarged Board, this provision requires that the Administrative Council's request specify individual incidents and the evidence for them, and give reasons why they constitute a serious ground within the meaning of Art. 23(1) EPC. It was not be up to the Enlarged Board to define of its own motion which facts may be derived from documents and exhibits. Simply referring to facts and evidence and leaving the Enlarged Board to reconstruct the events for itself neither satisfied the requirements of Art. 12a(5) RPEBA nor the respondent's right to know the charges against him. In the case in hand, as the Administrative Council's request was not substantiated as prescribed by Art. 12a(5) RPEBA, the Enlarged Board rejected the request as inadmissible.

5.6. Publication of the decision

According to Art. 18(3) RPEBA, the final decision of the Enlarged Board in proceedings under Art. 23(1), first sentence, EPC, may be published, due regard being taken of the confidentiality of the proceedings. Case G 2302/15 was terminated following the Administrative Council's withdrawal of its request that the Enlarged Board make a proposal